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Lincoln Township Zoning Board of Appeals

Tom Godau – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Kim Smith*** - Alternate

Rod Williams – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, May 10, 2017

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Board Members: Bridges, Secretary Engelhardt, Chair Godau, McCaslin, Vice-Chair Swanson,
Staff: Building Inspector Mantei, Recording Secretary Sherrod
Absent – Interim Zoning Administrator Rod Williams, excused
Public - 14

Approval of Minutes:
Regular Meeting minutes of April 12, 2017 – It was moved by Bridges and seconded by Engelhardt to accept the minutes as written. Motion carried 5 to 0.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau explained the structure and functions of the township government. He went on to explain what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the

roles of the zoning administrator and the building inspector. The decision of the zoning board of appeals shall be final.

A party aggrieved by the decision may appeal to the circuit court of Clare County within whichever of the following deadlines comes first:

a. Thirty days after the zoning board of appeals issues its decision in writing signed by the chairperson, if there is a chairperson, or signed by the members of the zoning board of appeals, if there is no chairperson.
b. Twenty-one days after the zoning board of appeals approves the minutes of its decision.

Purpose: Chair Godau read the following information: This is a variance request from Robert and Susan Guzowski regarding their property at 2568 Cedar Rd., Lincoln Township, Harrison, MI, 48625. The variance request was submitted on March 22, 2017.

They are seeking approval to build a 32X48X14 Pole Barn at a setback less than the required 90 feet from the road-right-of-way and larger in square footage than the current Township Zoning allows in an R-R zoning district.

Also they would exceed the maximum allowed accessory buildings (not to exceed 3) where the combined square footage of all accessory buildings shall not exceed twenty-four (2,400) square feet.

Public notice: Notice of this Public Hearing was posted in the *Clare County Cleaver* (Legal Section) on April 20, 2017. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted in person by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary

Petitioner's Statement: Bob Guzowski passed out to the board a packet of informational material relevant to their case. He orally presented each item, following the structure of the standards which the Board considers in their deliberations.

See **Attachment #1** for his entire presentation.

ZBA Members Comments & Questions: Tami McCaslin presented information concerning the new Zoning Ordinances. She stated that the Planning Commission does have concerns about 20 acre and larger parcels in the R-R District having more leeway in the size and number of their accessory buildings. She read the proposed changes made by Mark Eidelson, LandPlan Consultant. She explained that the Planning Commission has sent their opinion on these back to the Township Board.

She wanted to bring this to the attention of the ZBA because if this ordinance was already in place, the Guzowskis would not need to be here tonight. She also stated that she would not tear down the little cabin for a million dollars if it were on her property.

Engelhardt read a statement from the state which says in some cases of variance requests the ZBA just needs to use their common sense and good judgment to resolve an issue fairly.

Bridges stated as a member of the Township Board that he doesn't know when the new ordinance will be approved. He is bothered that this concerns an R-R district of 30 acres and that one more building won't hurt the property. If it had been zoned as agricultural, there would be no need for permits. He stated that the ZBA can't decide on historical or esthetic value. He agrees with McCaslin's statement. He also would not remove the historical log home on the property. He feels that they have a situation that does not apply to other R-R lots.

McCaslin thanked the Guzowskis for their patience and their welcome to their property as well as their input at these meetings.

Public Comment: No correspondence was received by Chair Godau.

A comment was made about procedures and was answered by two board members.

Another comment was made about the ordinance on the website being difficult to use and going to the wrong item in the accessory building section.
Several comments were made in support of the Guzowskis.

There was a lengthy discussion concerning the ability of the ZBA to use discretion in applying the ordinances.

Public Comment Closed by Chair

Discussion and Further Questions by ZBA Members: Some further discussion concerning the changes in the current ordinance occurred.

McCaslin stated that the board is pretty much in agreement that there is something wrong with the ordinance where it impacts this particular case.

Engelhardt stated that if he needed to, Guzowski could ask for a change in his lot lines. McCaslin said that would require another hearing by the Planning Commission.

Public Comment: No further comments from the public. Chair Godau made a few comments in support of the Zoning Administrator's decision.

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Chair Godau made a motion by reading the following statement: "Preface: With the intent to provide the appellant with substantial justice: A motion is made to grant the requested variance request with the understanding that the 90 ft. set back from the road-right-away[sic] is maintained. Remaining issues will become mute [sic] and/or inhibiting upon adoption of the pending and/or new Township Zoning Ordinance and affected revisions." Bridges seconded.

Upon further discussion and clarification of the wording of the above motion the motion failed.

Chair Godau then resubmitted his revised motion to grant the requested variance with the understanding that the 90 foot setback from the road-right-of-way is maintained. Bridges seconded.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Bridges: **Yea;** Engelhardt: **Yea;** Godau: **Yea**; McCaslin: **Yea**; Swanson: **Yea**

Motion Passed: 5 Yeas; 0 Nays. Variance is **Granted**.

Adjournment: McCaslin moved to adjourn; Engelhardt seconded. Motion passed with all in favor. Meeting adjourned at 8:19 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1

May 10th, 2017

Zoning Board of Appeals:
Tom Godau, Chair
Marshal Swanson, Vice Chair
Cynthia Englehardt, Secretary
Jerry Bridges, Twp. Liason
Tamara McCaslin, Liason
Kim Smith, Alternate

Property ID# 010-015-100-03
Owners: Bob & Sue Guzowski
2568 Cedar Rd. Harrison Mi.

Zoning Ordinances that apply:
Article I, Section 101 Purpose, **Article II,** 1&2, **Article III,** Section 300, **Article IV,** Section 401, 403, **Article XIII,** Table A, **Article XV,** Section 1502, or any other that may apply.

Purpose for Proposed construction of Accessory Building:
We propose to construct a 32X48x14 foot pole barn style construction, with 10x48 foot open lean style roof to the east side of building, located as described in submitted Zoning Permit. The building would be constructed and designed to complement the existing structures and can be viewed in submitted architectural rendering. The purpose of this building would be used to store and protect, recreational vehicles, trailers, boats, tractors, automobiles, and personal belongings to be stored inside and not contribute to any blight on described property.

Reason for seeking variance:
Existing accessory buildings on property were constructed prior to enactment of current zoning ordinances, two of the three accessory buildings have a historic value, and a personal family value, Sue's Father Ray Wellman and family homesteaded existing described property in his youth, while residing in log cabin located on described property. The passage of **Article XV section IV** effectively made our 20 acre parcel dead for building. For us to erect proposed pole building and be compliant to codes, removal of the log cabin and old chicken coop located to the north of log cabin would need to be torn down, a unacceptable option for us.

Economic Impact:
A building project of this scope involves a substantial investment. Sue and I have always been one to support the local economy. This project if allowed will support the following local businesses.

- Blain Excavating Lake George, Mi.
- Hershbergers Pro Hardware, Clare, Mi.
- Luthy Metal Sales, Rosebush, Mi.
- Gingrich Home Construction, Clare, Mi.
- Crown Concrete Harrison, Mi.
- Increased tax base for Lincoln Township and Clare County.

In Granting the proposed Variance the spirit of the zoning ordinance is observed, public safety is secured, and substantial justice is done.

Thank you for your consideration,

Robert & Sue Guzowski

Robert & Sue Guzowski May 10, 2017 Zoning Variance hearing on Accessory Buildings

Practical Difficulty

I can meet 90 foot setback from road right of way for building and withdraw the setback request. The strict compliance of ordinance 1502 subsection 4 is unnecessarily burdensome for us. The burden being that to fall in compliance with this ordinance two existing buildings would need to be destroyed, and denies land owner a permitted right.

1. **Unique Situation**
   This property is zoned R/R and is a 20 acre parcel, we also own the 10 acres to the west and the property lines are contiguous. The unique situation posed to us is the two buildings are of small square footage and date back to 1906, and one of the buildings a log cabin has family value, Sues Grandfather Homesteaded this property and resided in the log cabin. The historic value to the Township is displayed in a painting on the very walls we are holding this meeting. It has always given us great pride that we have been able to preserve this structure. This condition is unique to our property and not shared by any of our immediate surrounding property.

2. **Substantial Justice**
   Granting of this variance for an additional accessory building and square footage would not cause any detrimental value or public safety concerns for adjoining properties. I would argue that it would increase the public safety and value of property by allowing property owner to keep all his belongings inside a building, and not contributing to any blight on the property, nor cause future land owners any detriment.

3. **Practical Difficulty**
   We did not create this practical difficulty. The two structures in question have been on this property before zoning ordinance was passed.

4. **Minimum Variance Necessary**

The minimum square footage allowed for accessory buildings in Article XV, Section 1502 is restrictive to all land owners zoned R/R who have a minimum of 10 acres. The granting of this variance to allow a 32x48 foot accessory building with a 10 foot open lean will allow the proper storage of all vehicles, boats, tractors, and equipment protecting the surrounding property from any blight conditions.

In Granting the proposed Variance the spirit of the zoning ordinance is observed, public safety is secured and substantial justice is done.